FOR BUSINESS OWNERS, FAMILY OFFICES & NRIS · 7 NOVEMBER 2026

5 moves that affect your business this week.

- Delhi HC frees Dash Exports assets from an ED attachment after an IBC rescue
- Delhi HC shuts former promoters out of Section 32A cover
- SEBI's 2026 settlement rules go live with an online calculator
- SEBI prices settlement entry at Rs 25,000 with a Rs 3 lakh floor
- SEBI fast-tracks settlements up to Rs 10 lakh

SWIPE →

ED / PMLA · DELHI HIGH COURT

Delhi HC lifts ED attachment after IBC resolution

On 6 November 2026, in Dash Exports Private Limited v Directorate of Enforcement, Justices Navin Chawla and Arun Bhardwaj held that an ED attachment made before approval of an insolvency resolution plan does not survive merely because it came first. The bench set aside the PMLA Appellate Tribunal's order of 12 August 2025 and directed release of a Rs 3.01 crore fixed deposit within two weeks.

WHO IS EXPOSED · WHAT TO CHECK

Acquirers of distressed companies through the IBC, and the lenders funding those bids, are exposed because attached property can now be recovered as part of the deal value. This week, list every ED attachment sitting on a target you have bought or are bidding for and check whether plan approval came before or after it.

IBC / PROMOTER RISK · DELHI HIGH COURT

Section 32A shield stops at the old promoter's door

The same 6 November 2026 Dash Exports ruling made clear that Section 32A, the IBC provision that cleans a company of liability for past offences, applies only where control passes to an unconnected acquirer. Former promoters, previous management and related parties get no release, and the court described the relief as prospective rather than a retrospective wiping of the original attachment.

WHO IS EXPOSED · WHAT TO CHECK

Promoter families hoping to reacquire their own company through a friendly bidder or a group entity are exposed because the attachment stays with them. Check this week whether any proposed acquirer in your resolution plan could be tagged a related party or connected person under the IBC.

SECURITIES · SEBI

SEBI's new settlement rulebook takes effect today

SEBI's Settlement of Administrative and Civil Proceedings Regulations, 2026 came into force on 7 November 2026, replacing the 2018 framework subject to transitional provisions. SEBI announced the change on 6 November along with an online application facility and a settlement-amount calculator.

WHO IS EXPOSED · WHAT TO CHECK

Listed companies, promoters, directors and market intermediaries with a pending or likely SEBI proceeding are affected, since both the route and the price of closing it have changed. Check this week whether any proceeding your company is handling under the 2018 rules falls within the transitional provisions.

SECURITIES · SEBI

Settlement now costs Rs 25,000 just to apply

Under the regime effective 7 November 2026, non-refundable application fees are Rs 25,000 for individuals and Rs 35,000 for other applicants. Minimum settlement amounts are Rs 3 lakh for first-time applicants and Rs 7 lakh for others, as reported by ETLegal on 6 November and CNBC-TV18 on 7 November.

WHO IS EXPOSED · WHAT TO CHECK

Independent directors and compliance officers facing personal show-cause notices are exposed because the floor applies to individuals, not only to companies. Run the new SEBI calculator this week against any notice you have received to see whether settling beats contesting.

SECURITIES · SEBI

SEBI fast-tracks settlements up to Rs 10 lakh

The 2026 regulations introduce a monetary-threshold fast track for eligible settlements up to Rs 10 lakh where no disgorgement, meaning repayment of gains, and no remedial or regulatory terms are involved. Serious categories of violation remain excluded, so the regime is not a general amnesty.

WHO IS EXPOSED · WHAT TO CHECK

Small brokers, advisers and promoters with minor disclosure lapses are the readers who can use this, since the fast track is built for low-value matters. Check this week whether any open lapse would be priced under Rs 10 lakh and carries no disgorgement demand.

THE THROUGH-LINE

Courts and regulators are drawing a sharper line between the people who caused a problem and the people who buy or settle their way out of it. If you are the clean buyer or the settling party the exit is cheaper and clearer, but if you are the original promoter the door is closing.

If any of these touches your company or family, message me the number. I will tell you where you stand.

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